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Case Number: 26NNCV00232 Hearing Date: September 9, 2026 Dept: P

[TENTATIVE] ORDER GRANTING

PLAINTIFF'S MOTION TO QUASH DEPOSITION SUBPOENAS SEEKING PRODUCTION OF BUSINESS RECORDS

I. INTRODUCTION

This is a

personal injury action brought by Plaintiffs Iman Yael Schaefer and Mary Susan Schaefer against Defendants Eden on Brand, Inc.; Won Jae Lee and Sophia Eunkyung Lee, as Trustees of The Lee 2003 Revocable Trust Agreement dated November 26, 2003. Plaintiffs allege that Iman Schaefer sustained serious injuries after falling on Defendants' premises due to a dangerous condition, and that Mary Schaefer suffered emotional distress and loss of consortium as a result.

On August 11, 2026, Plaintiff Iman

Yael Schaefer ("Plaintiff")

filed the instant motion to quash deposition subpoenas seeking production of business records. On August 26, 2026, Defendants filed an opposition, and on August 31, 2026, Plaintiff filed a reply

II. LEGAL STANDARD

Code of Civil Procedure section 1987.1 states, "When a subpoena requires...the production of [documents], the court, upon motion reasonably made by the party, the witness or any consumer described in Section 1985.3...may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon such terms or conditions as the court shall

declare, including protective orders.” “The court may make any other order as may be appropriate to protect the parties, the witness, or the consumer from unreasonable or oppressive demands including unreasonable violations of a witness’s or consumer’s right of privacy.” (Id.)

Except as otherwise provided, “any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for trial of the action.” (CCP, § 2024.020(a).) Generally, “a continuance or postponement of the trial date does not operate to reopen discovery proceedings” unless a motion to reopen discovery is filed and granted pursuant to CCP section 2024.050. (CCP, § 2024.020(b); Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc. (2008) 165 Cal.App.4th 1568; but see CCP § 599(a) [providing that trial continuances also continue cut off dates during COVID-19 related state of emergency].)

“The purpose of imposing a time limit on discovery is to expedite and facilitate trial preparation and to prevent delay. Without a cutoff date, the parties could tie up each other and the trial court in discovery and discovery disputes right up to the eve of trial or beyond. Furthermore, . . . to be effective the cutoff date must be firm or some litigants will manipulate the proceedings to avoid the cut-off date.” (Beverly Hosp. v. Superior Court (1993) 19 Cal.App.4th 1289, 1295.) .

III. ANALYSIS

Plaintiff moves to quash Defendants 10 deposition subpoenas seeking business records from (1) Dr. Yuriy Verpukhovskiy (x2), (2) Dr. James Nassiri, (3) Providence Cedars-Sinai Rehabilitation Center, (4) Mission Hills Family Clinic, (5) LA Peace of Mind Counseling Services, (6) Cedars-Sinai Medical Center (Billing), (7) Cedars Sinai Medical Center (X-rays), (8) Cedars-Sinai Medical Center, and (9) University of California at Santa Cruz. (Motion, pp. 1-2.)

Plaintiff argues that the subpoenas should be quashed because they are untimely and seek production of records after the fact discovery cutoff. (Motion, pp.3-4.) The subpoenas were issued in July 2026 with production dates ranging from August 11 through September 2, 2026. Plaintiff further states that upon learning of the subpoenas on August 11, 2026, counsel attempted to meet and confer, but

Defendants refused to withdraw them. (Id.)

In opposition, Defendants argue that the motion elevates form over substance. First, Defendants contend that they complied with the statutory notice requirements governing consumer-record subpoenas and that Plaintiff's counsel's failure to personally learn of the subpoenas until August 11, 2026, does not render them defective. (Opposition, pp. 4-6.)

Defendants further argue that the post-cutoff production dates resulted from their subpoena service providing additional time for compliance, and that many of the records could have been produced before the cutoff had the earliest permissible dates been selected. (Opposition, pp. 6-7.) Finally, Defendants contend that Plaintiff has shown no prejudice and argue that Plaintiff herself served third-party subpoenas after the discovery cutoff. (Opposition, pp. 7-8.)

In reply, Plaintiff argues that Defendants do not dispute that the subpoenas require production after the discovery cutoff. The Court agrees with Plaintiff. Here, the fact discovery cutoff was August 10, 2026. The subpoenas required production on dates ranging from August 11 through September 2, 2026, all after the discovery cutoff. Although the subpoenas were issued before the cutoff, the discovery contemplated by the subpoenas was not scheduled to be completed until after the cutoff.

Because the subpoenas seek discovery after the discovery cutoff, Defendants were required to seek leave to reopen discovery pursuant to Code of Civil Procedure section 2024.050. A trial court may not hear an untimely discovery motion without first determining whether discovery should be reopened for that purpose. (*Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.* (2008) 165 Cal.App.4th 1568, 1586.)

The reopening of discovery is a matter that is committed to the trial court's sound discretion. (CCP, § 2024.050(a), (b).)

In exercising that discretion, the trial court considers "any matter relevant to the leave requested," including: (1) The necessity and the reasons for the discovery; (2) The diligence or lack of diligence of the party seeking the discovery or the hearing of a discovery motion, and the reasons that the discovery was not completed or that the discovery motion was not heard earlier; (3) Any likelihood that permitting the discovery or hearing the discovery motion will prevent the case from going to trial on the date set, or

otherwise interfere with the trial calendar, or result in prejudice to any other party; and (4) The length of time that has elapsed between any date previously set, and the date presently set, for the trial of the action. (CCP, § 2024.050(b).) A motion to reopen discovery pursuant to CCP section 2024.050 must be accompanied by a meet and confer declaration demonstrating a good faith effort at informal resolution. (CCP § 2024.050(a).)

Here, Defendants have not moved to reopen discovery pursuant to section 2024.050. Instead, they ask the Court, in opposition to Plaintiff's motion to quash, to permit completion of the subpoenas notwithstanding the expired discovery cutoff. (Opposition, pp. 8-9.) Defendants' arguments concerning the necessity of records, lack of prejudice and circumstances resulting in the post-cutoff production dates are better addressed in a motion to reopen discovery under section 2024.050.

Based on the foregoing, the Court GRANTS Plaintiff's motion to quash.

IV. CONCLUSION/ORDER

The Court GRANTS Plaintiff's motion to quash Defendant's 10 deposition subpoenas seeking business records from (1) Dr. Yuriy Verpukhovskiy (x2), (2) Dr. James Nassiri, (3) Providence Cedars-Sinai Rehabilitation Center, (4) Mission Hills Family Clinic, (5) LA Peace of Mind Counseling Services, (6) Cedars-Sinai Medical Center (Billing), (7) Cedars Sinai Medical Center (X-rays), (8) Cedars-Sinai Medical Center, and (9) University of California at Santa Cruz.

Plaintiff is to give notice.

Dated: September 9, 2026

JARED D. MOSES
JUDGE OF THE SUPERIOR COURT